

## M/s Nav Bharat Duplex Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · Writ-C No. 17706 of 2013 · **Writ dismissed as infructuous; Para 4.20 additional-security challenge not decided.**

### HEADNOTE

Writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending matters and restrained by an interim order following a connected petition; it was later dismissed as infructuous on the petitioner's statement, without deciding the additional-security demand.

### FACTUAL SUMMARY

M/s Nav Bharat Duplex Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 April 2013 a Division Bench connected the writ with WP No. 30582 of 2009 and similar pending 4.20 matters, granted time for a counter affidavit, and, following that connected interim order, restrained the respondents from demanding additional security until further orders. On 12 September 2016 petitioner's counsel stated the writ had become infructuous.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.20

additional security deposit

#### HOLDING

A writ challenging the licensee's demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with similar pending petitions and, following the interim order in Writ Petition No. 30582 of 2009, the respondents were restrained from demanding additional security until further orders; the petition was later dismissed as infructuous on the petitioner's statement, without any decision on the legality of the Para 4.20 demand. ¶ 1-2

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER ADDITIONAL SECURITY CAN BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2013 order only granted an interim restraint following a connected petition; the 2016 order dismissed the writ as infructuous on counsel's statement. ¶ 1-2